

Court No. - 74

Case :- APPLICATION U/S 528 BNSS No. - 13227 of 2025

Applicant :- Udit Narayan

Opposite Party :- State Of U.P. And 2 Others

Counsel for Applicant :- Ray Sahab Yadav

Counsel for Opposite Party :- Baleshwar Chaturvedi,G.A.

Hon'ble Saurabh Srivastava,J.

1. Heard learned counsel for applicant and learned counsel appearing on behalf of Electricity Department.
2. The present application has been preferred for seeking quashing of entire proceedings of Special Sessions Trial No.709 of 2023 (State Vs. Udit Narayan), arising out of Case Crime No.3304 of 2020, under Section 135 of Indian Electricity (Amendment) Act, 2003, P.S. Anti Power Theft, District Jalaun as well as chargesheet submitted in the said case, pending in the court of Additional Sessions Judge/Special Judge (E.C. Act), Jalaun at Orai.
3. Learned counsel for applicant submitted that before lodging of the present FIR, one application has already been preferred at the behest of applicant before concerned department for getting electricity connection by way of paying requisite fee but till today, no connection has been provided to applicant, meanwhile, concerned department issued recovery citation against applicant which was challenged before Division Bench of this Court by way of filing Writ C No.13982 of 2023 which was allowed vide order dated 16.05.2023 by way of quashing the said recovery citation with a direction to the concerned department to proceed fresh in accordance with the procedure prescribed under the U.P. Electricity Supply Code, 2005. Learned counsel for applicant further submitted that despite of the said order, chargesheet has been submitted which is illegal.
4. Learned counsel appearing on behalf of Electricity Department submitted that the said recovery citation was withdrawn by the department itself since the same was issued by ignoring the provisions of U.P. Electricity Supply Code, 2005 and now, by following the procedure as mentioned in the said Code, new assessment has been prepared and as per the new assessment, more than Rs.1,00,000/- has been shown as dues along with compounding fee against applicant.

5. In view of the aforementioned facts and circumstances, applicant is directed to deposit Rs.50,000/- before the concerned authority of Electricity Department within a period of three weeks from today in pursuance of new assessment and in case, applicant deposits the said amount with three weeks from today, entire criminal proceedings of Special Sessions Trial No.709 of 2023 (State Vs. Udit Narayan), arising out of Case Crime No.3304 of 2020, under Section 135 of Indian Electricity (Amendment) Act, 2003, P.S. Anti Power Theft, District Jalaun, shall remain stayed till the next date and also the concerned authority shall provide connection to the applicant in pursuance of his application for getting electricity connection which has already been submitted by applicant.

6. List this matter after six weeks.

7. Meanwhile, learned counsel for both the parties, may exchange their pleadings.

Order Date :- 5.5.2025

Vivek Kr.